

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1481

By: Seifried of the Senate

and

Caldwell (Chad) of the
House

6
7
8
9
10 An Act relating to schools; amending 70 O.S. 2021,
11 Section 11-103.9, which relates to physical education
12 program requirements; requiring certain schools to
13 provide students in certain grades certain amount of
14 recess per day as a condition of accreditation;
15 allowing recess to be divided into two periods;
16 requiring recess to consist of certain play;
17 prohibiting removal of recess as a form of
18 discipline; removing language encouraging certain
19 amount of recess in certain grades; updating
20 statutory language; providing an effective date; and
21 declaring an emergency.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-103.9, is
24 amended to read as follows:

25 Section 11-103.9. A. Except as otherwise provided for in this
26 section, the State Board of Education shall require, as a condition

1 of accreditation, that school districts provide to all students
2 physical education programs which may include athletics.

3 B. The Board shall require, as a condition of accreditation,
4 that public elementary schools provide instruction, for students in
5 full-day kindergarten and grades one through five, in physical
6 education or exercise programs for a minimum of an average of sixty
7 (60) minutes each week. The time students participate in recess
8 shall not be counted toward the sixty-minutes-per-week physical
9 education requirement. Schools may exclude from participation in
10 the physical education or exercise programs required in this
11 subsection those students who have been placed into an ~~in-house~~ in-
12 school suspension or detention class or placement or those students
13 who are under an in-school restriction or are subject to an
14 administrative disciplinary action.

15 C. The Board shall require, as a condition of accreditation,
16 that public elementary schools provide to students in full-day
17 kindergarten and grades one through five, in addition to the
18 requirements set forth in subsection B of this section, an average
19 of sixty (60) minutes each week of physical activity, which may
20 include, but not be limited to, physical education, exercise
21 programs, fitness breaks, ~~recess,~~ and classroom activities, and
22 wellness and nutrition education. Each school district board of
23 education shall determine the specific activities and means of
24 compliance with the provisions of this subsection, giving

1 consideration to the recommendations of each school's Healthy and
2 Fit School Advisory Committee as submitted to the school principal
3 pursuant to the provisions of Section 24-100a of this title.

4 D. The Board shall require, as a condition of accreditation,
5 that public elementary schools provide to students in full-day
6 kindergarten and grades one through five, in addition to the
7 requirements of subsections B and C of this section, forty (40)
8 minutes of recess per school day, which may be divided into two
9 recess periods of twenty (20) minutes each. Recess shall consist of
10 supervised, unstructured time for play. No student shall be
11 prohibited from participating in recess as a form of discipline.

12 E. The Board shall disseminate information to each school
13 district on the benefits of physical education programs and shall
14 strongly encourage districts to provide physical education
15 instruction to students in grades six through twelve. The Board
16 shall also strongly encourage school districts to incorporate
17 physical activity into the school day by providing ~~to students in~~
18 ~~full-day kindergarten and grades one through five at least a twenty-~~
19 ~~minute daily recess, which shall be in addition to the sixty (60)~~
20 ~~minutes of physical education as required by subsection B of this~~
21 ~~section, and by allowing all students brief physical activity breaks~~
22 throughout the day, physical activity clubs, and special events.

1 ~~E.~~ F. Instruction in physical education required ~~in~~ by this
2 section shall be aligned with the subject matter standards as
3 adopted by the Board.

4 ~~F.~~ G. The physical education curriculum shall be sequential,
5 developmentally appropriate, and designed, implemented, and
6 evaluated to enable students to develop the motor and self-
7 management skills and knowledge necessary to participate in physical
8 activity throughout life. Each school district shall establish
9 specific objectives and goals the district intends to accomplish
10 through the physical education curriculum.

11 ~~G.~~ H. In identifying the essential knowledge and skills, the
12 State Board of Education shall ensure that the subject matter
13 standards for physical education:

14 1. Emphasize the knowledge and skills capable of being used
15 during a lifetime of regular physical activity;

16 2. Are consistent with national physical education standards
17 for:

18 a. the information that students should learn about
19 physical activity, and

20 b. the physical activities that students should be able
21 to perform;

22 3. Require that, on a weekly basis, at least fifty percent
23 (50%) of the physical education class be used for actual student
24

1 physical activity and that the activity be, to the extent
2 practicable, at a moderate or vigorous level;

3 4. Offer students an opportunity to choose among many types of
4 physical activity in which to participate;

5 5. Offer students both cooperative and competitive games;

6 6. Meet the needs of students of all physical ability levels,
7 including students who have a disability, chronic health problem, or
8 other special need that precludes the student from participating in
9 regular physical education instruction but who might be able to
10 participate in physical education that is suitably adapted and, if
11 applicable, included in the student's individualized education
12 program;

13 7. Teach self-management and movement skills;

14 8. Teach cooperation, fair play, and responsible participation
15 in physical activity;

16 9. Promote student participation in physical activity outside
17 of school; and

18 10. Allow physical education classes to be an enjoyable
19 experience for students.

20 ~~H. I.~~ I. The Board shall ~~adopt~~ promulgate rules to implement the
21 provisions of this section.

22 SECTION 2. This act shall become effective July 1, 2026.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3

4 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
5 04/15/2026 - DO PASS.

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25